

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sally Lynn Edmonds	Team: Squad #07	CCRB Case #: 201700007	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 12/25/2016 3:36 PM	Location of Incident: in front of § 87(2)(b)	18 Mo. SOL 6/25/2018	Precinct: 105
Date/Time CV Reported Tue, 12/27/2016 9:26 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/30/2016 11:15 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Edwanna Johnson	19002	943409	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Marc Rudon	03362	949585	105 PCT
2. SGT Thomas Oconnor	2154	946069	105 PCT
3. POM Brendan Mcnamara	15231	957842	105 PCT
4. POM Michael Polly	17688	959083	105 PCT
5. POM Richard Napolitano	14017	956967	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Edwanna Johnson	Discourtesy: Police Officer Edwanna Johnson spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed the following complaint with the Internal Affairs Bureau (IAB) on December 27, 2016 (Board Review 01; 02). The CCRB received this complaint on December 30, 2016.

On December 25, 2016, at approximately 3:36 p.m., § 87(2)(b) called 911 to report that his landlord, § 87(2)(b), assaulted him in his residence at § 87(2)(b) in Queens. § 87(2)(b) and his landlord had called the police on each other dozens of times over the course of several months due to various landlord-tenant disputes.

PO Brendan McNamara, PO Marc Rudon, PO Michael Polly, PO Richard Napolitano, PO Edwanna Johnson and Sgt. Thomas Oconnor, all of the 105th Precinct, responded to the location, as did an FDNY ambulance staffed by EMTs § 87(2)(b) and § 87(2)(b). § 87(2)(b) was treated for an injury on his arm inside the ambulance while PO Napolitano and PO Polly stood watch outside the ambulance.

While § 87(2)(b) was being treated, PO Johnson went inside the ambulance and allegedly made various discourteous statements to § 87(2)(b) including, “Your story sounds like bullshit. I know you are fucking lying. If you are lying we are going to arrest your ass,” “You’re fucking lying. I don’t believe shit you’re saying. You are bullshitting us,” and “You see, I knew he was fucking lying. When people start talking about Internal Affairs and CCRB, you know they’re full of shit” (**Allegation A**).

The officers reviewed surveillance footage of the incident, which showed that § 87(2)(b) and § 87(2)(b) did not come into contact during the time the assault allegedly occurred. PO Rudon subsequently arrested § 87(2)(b) for making a false report.

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation due to § 87(2)(b)'s arrest and his ongoing interactions with and complaints against officers from the 105th Precinct.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- On February 17, 2017, the New York City Comptroller's Office notified the CCRB that § 87(2)(b) had not filed a Notice of Claim (Board Review 08).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint. § 87(2)(g)
[REDACTED]
- PO Johnson has been a member of the NYPD for 10 years. This is the first CCRB complaint against her.

Findings and Recommendations

Allegations not Pleaded

- § 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(g)

Allegation A – Discourtesy: Police Officer Edwanna Johnson spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) provided a statement to IAB, followed by a CCRB phone statement and a sworn statement to the CCRB (Board Review 01; 02; 05; 06).

§ 87(2)(b) stated that he was sitting in an ambulance and being attended by two EMTs when PO Johnson entered the ambulance through the side door and used profanity towards him. The EMTs, as well as two officers, whom he identified as PO Polly and PO McNamara, heard PO Johnson make these comments. PO Polly and PO McNamara were standing behind the ambulance, about three to four feet away from where § 87(2)(b) was sitting.

§ 87(2)(b) provided variations of the discourteous statements made to him by PO Johnson: The statement § 87(2)(b) quoted to IAB was “You are lying, this is bullshit, and I’m tired of coming to this house.” During his phone statement with the CCRB, § 87(2)(b) alleged that PO Johnson said, “Your story sounds like bullshit,” and, “If you’re lying we’re going to lock you up.” Yet, during his sworn statement to the CCRB, § 87(2)(b) alleged that PO Johnson said, “Your story sounds like bullshit. I know you are fucking lying. If you are lying we are going to arrest your ass,” “You’re fucking lying. I don’t believe shit you’re saying. You are bullshitting us,” and “You see, I knew he was fucking lying. When people start talking about Internal Affairs and CCRB, you know they’re full of shit.”

EMTs § 87(2)(b) and § 87(2)(b) were both interviewed at the CCRB (Board Review 07; 09). They both confirmed that they were in the ambulance with § 87(2)(b) and that they would have heard any interaction between § 87(2)(b) and an officer that took place inside the ambulance. Neither EMT recalled an officer cursing or an officer making the alleged discourteous statements. Whereas EMT § 87(2)(b) did not recall § 87(2)(b) interacting with a black female officer or a black female officer being at the location at all, EMT § 87(2)(b) recalled that an officer, whose race and gender he could not recall, entered the ambulance through the side door and asked § 87(2)(b) to narrate what happened, which § 87(2)(b) did.

PO Johnson responded to the location with Sgt. Oconnor (Board Review 13). She stated that after learning that § 87(2)(b) had video footage of the incident, she entered the ambulance to inform § 87(2)(b) of this development and to give him a chance to tell the truth before the evidence was reviewed and he was potentially found guilty of making a false report. Unprompted, and before being asked about the allegations in her CCRB interview, PO Johnson stated that she told § 87(2)(b) “Listen, tell us the truth because your landlord has video tape of this entire incident, and if you’re lying, you’re going to go to jail. So don’t B.S. us. Tell us the truth; you’ll be arrested if you’re lying.” When asked if she specifically said “don’t ‘B.S.’ us,” or “don’t bullshit us,” PO Johnson said she did not recall and that it “could have been” that she used the word “bullshit.” PO Johnson definitively denied making any of the other alleged statements or using additional profanity.

PO Polly and PO Napolitano were both interviewed at the CCRB (Board Review 11; 10). PO Polly and PO Napolitano were partnered and were both standing about two to three feet away from the back of the ambulance, or about five feet away from § 87(2)(b) the entire time that § 87(2)(b) was in the ambulance. Neither officer heard PO Johnson curse or make the alleged discourteous statements. PO Polly and PO Napolitano said that PO Johnson told § 87(2)(b) that if he gave a false statement he would be arrested. PO Napolitano could not hear all of their conversation because there was ongoing traffic and other officers were talking. Also, PO Johnson and § 87(2)(b) were not speaking loudly.

PO McNamara stated that he was not positioned outside the ambulance, but rather inside the house, and that he did not hear the alleged discourteous statements (Board Review 12).

Officers are to be courteous and respectful when interacting with members of the public. NYPD Patrol Guide, Section 203-09 (Board Review 14). The courts have held that limited use of profanity, when used to maintain order in a stressful street encounter, does not constitute misconduct. NYPD v. White, OATH Index 78667/03 (Board Review 15).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 07

Investigator:	_____	<u>Lynn Edmonds</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Diana Townsend</u>	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date